U.S. Department
of Transportation
**Federal Aviation
Administration**

Office of the Chief Counsel

800 Independence Ave., S.W.
Washington, D.C. 20591

AUG - 8 2013

Danny Creech
[redacted]

Dear Mr. Creech:

This responds to your request for a legal interpretation postmarked April 4, 2013. Your letter requests clarification concerning the logging of pilot-in-command (PIC) time under 14 C.F.R. § 61.51(e) as it applies to multiple pilots in a twin-engine aircraft.

Your letter presents a scenario in which Pilot A and Pilot B rent a twin-engine aircraft certificated for single pilot operation so that Pilot A may make several practice approaches in order to maintain instrument currency. Both pilots have appropriate ratings for the aircraft. To simulate instrument flight rules (IFR) conditions while flying in visual meteorological conditions (VMC), Pilot A puts on a view-limiting device after takeoff and Pilot B acts as a safety pilot for that portion of the flight. Pilot A is the sole manipulator of the controls throughout the entire flight. Your letter asks who may log multi-engine PIC time in this scenario.

Section 61.51(e) governs the logging of PIC flight time, and states in pertinent part that a sport, recreational, private, or commercial pilot may log PIC time for the time during which that pilot is "the sole manipulator of the controls of an aircraft for which the pilot is rated or has privileges" or "acting as pilot in command of an aircraft on which more than one pilot is required under . . . the regulations under which the flight is conducted."

Your letter references the Legal Interpretation to John Speranza (Dec. 4, 2009), however, the Legal Interpretation to Jeff Gebhart (June 22, 2009), which is enclosed, is more applicable to your question.

Mr. Gebhart's letter presented a scenario in which two pilots are flying during VMC conditions in an aircraft for which both pilots have appropriate ratings. Pilot A flies the aircraft and Pilot B acts as the pilot-in-command. We informed Mr. Gebhart that in this scenario Pilot A may log the entire flight as PIC flight time "because that pilot was the sole manipulator of the controls for the entire flight." Additionally, Pilot B may log PIC time for the time during which Pilot B acted as the safety pilot for Pilot A's simulated instrument flight "because Pilot B was a required flight crewmember for that portion of the flight" under 14 C.F.R. § 91.109(c).

In the scenario you present Pilot A may log the entire flight as PIC time as that pilot is the sole manipulator of the controls for the entire flight.

Assuming that Pilot B is acting as PIC for the flight, Pilot B may log any portion of the flight during which Pilot A operated in simulated instrument flight and Pilot B acted as the safety pilot because Pilot B's presence is required for that portion of the flight under § 91.109(c).

However, if Pilot A is acting as PIC for the flight, then only Pilot A may log PIC time during the flight. Pilot B is a required crewmember under § 91.109(c) and may log second-in-command (SIC) time under § 61.51(f) during the time that Pilot A operates in simulated instrument conditions. *See* Legal Interpretation to William F. Trussell (July 24, 2012) (enclosed).

These logging rules apply regardless of whether the pilots are flying a multi-engine aircraft.

We hope this information has been helpful. This response was prepared by Jim Burleson under the supervision of Robert Hawks, an attorney in the International Law, Legislation, and Regulations Division of the Office of the Chief Counsel, and coordinated with the General Aviation and Commercial Division of Flight Standards Service. If you have further questions concerning this response, please contact us at 202-267-3073.

Sincerely,

Mark Bury
Acting Assistant Chief Counsel for
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Enclosures